



SPONSOR: Rep. Phillips & Sen. Lockman
Reps. Bolden, Gorman, S. Moore, Morrison, Neal,
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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 115

AN ACT TO AMEND THE DELAWARE CODE RELATING TO THE PROHIBITION OF DISCRIMINATION BASED ON WEIGHT, HEIGHT, OR BODY SIZE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 19, Title 2 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and redesignating accordingly:

3 § 1901. Definitions.

4 As used in this chapter:

5 (1) “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or
6 proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part,
7 weight, height, or body size.

8 (3) “Height” means a numerical measurement of total body height, the expression of a person’s height in relation
9 to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of
10 height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg,
11 torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or
12 short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create
13 the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

14 (11) “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in relation to
15 height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique physical composition of
16 weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as
17 waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited
18 to, an impression of a person as fat or thin regardless of numerical measurement. An individual’s body size, shape
19 proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

20 § 1917. No discrimination; accessibility.

(a) The TNC shall adopt a policy of nondiscrimination on the basis of destination, race, color, national origin, religious belief or affiliation, sex, disability, age, sexual orientation, ~~or gender identity~~identity, weight, height, or body size with respect to riders and potential riders and notify TNC drivers of such policy.

(b) TNC drivers shall comply with all applicable laws regarding nondiscrimination against riders or potential riders on the basis of destination, race, color, national origin, religious belief or affiliation, sex, disability, age, sexual orientation, ~~or gender identity~~identity, weight, height, or body size.

Section 2. Amend Chapter 45, Title 6 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 4501. Purpose and construction.

This chapter is intended to prevent, in places of public accommodations, practices of discrimination against any person because of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, ~~or national origin~~origin, weight, height, or body size. This chapter shall be liberally construed to the end that the rights herein provided for all people, without regard to race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, ~~or national origin~~origin, weight, height, or body size may be effectively safeguarded. Furthermore, it is appropriate for the Commission to consult with, consider, and apply higher or more comprehensive obligations established by otherwise applicable federal, state, or local law in defining the scope or extent of any duty imposed by this chapter.

§ 4502. Definitions.

For purposes of this chapter:

(3) “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(14) “Height” means a numerical measurement of total body height, the expression of a person’s height in relation to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(33) “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in relation to height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as

51 waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited
52 to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape
53 proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

54 § 4503. Persons entitled to protection.

55 All persons within the jurisdiction of this State are entitled to the full and equal accommodations, facilities,
56 advantages and privileges of any place of public accommodation regardless of the race, age, marital status, creed, religion,
57 color, sex, disability, sexual orientation, gender identity, ~~or national origin~~origin, weight, height, or body size of such
58 persons.

59 § 4504. Unlawful practices.

60 (a) (1) a. No person being the owner, lessee, proprietor, manager, director, supervisor, superintendent, agent, or
61 employee of any place of public accommodation, may directly or indirectly refuse, withhold from, or deny to any person,
62 on account of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, ~~or national~~
63 origin, weight, height, or body size any of the accommodations, facilities, advantages, or privileges of the public
64 accommodation.

65 (b) (1) No person, being the owner, lessee, proprietor, manager, superintendent, agent, or employee of any place of
66 public accommodation, shall directly or indirectly publish, issue, circulate, post, or display any written, typewritten,
67 mimeographed, printed, television, Internet, or radio communications notice or advertisement to the effect that any of the
68 accommodations, facilities, advantages, and privileges of any place of public accommodation shall be refused, withheld
69 from or denied to any person on account of race, age, marital status, creed, religion, color, sex, disability, sexual
70 orientation, gender identity, ~~or national origin~~origin, weight, height, or body size, or that the patronage or custom thereat
71 of any person belonging to or purporting to be appearing to be of any particular race, age, marital status, creed, religion,
72 color, sex, disability, sexual orientation, gender identity, ~~or national origin~~origin, weight, height, or body size is unlawful,
73 objectionable, or not acceptable, desired, accommodated, or solicited, or that the patronage of persons of any particular
74 race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, ~~or national origin~~origin,
75 weight, height, or body size is preferred or is particularly welcomed, desired, or solicited.

76 Section 3. Amend Chapter 46, Title 6 of the Delaware Code by making deletions as shown by strike through and
77 insertions as shown by underline as follows and redesignating accordingly:

78 § 4601. Declaration of purpose and construction.

79 (a) *Purpose.* — This chapter is intended to eliminate, as to housing offered to the public for sale, rent or exchange,
80 discrimination based upon race, color, national origin, religion, creed, sex, marital status, familial status, source of income,

age, sexual orientation, disability, ~~or housing-status~~ status, weight, height, or body size and to provide an administrative procedure through which disputes concerning the same may effectively and expeditiously be resolved with fairness and due process for all parties concerned.

§ 4602. Definitions.

For purposes of this chapter:

(3) “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(18) “Height” means a numerical measurement of total body height, the expression of a person’s height in relation to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(34) “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in relation to height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual’s body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

§ 4603. Discrimination in sale or rental of housing and other prohibited practices.

(b) Except as exempted by § 4607 of this title, it shall be unlawful:

(1) To discriminate in the sale or rental, to refuse to sell or rent, to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing-status~~ status, weight, height, or body size.

(2) To discriminate against any person in the terms, ~~conditions~~ conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing-status~~ status, weight, height, or body size.

(3) To make, print or publish, or cause to be made, printed or published any notice, statement or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, ~~limitation~~limitation, or discrimination based on race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~, status, weight, height, or body size, or an intention to make any such preference, limitation or discrimination. However, nothing in this chapter restricts the inclusion of information about the availability of housing accessible to persons with a disability in advertising of dwellings.

(4) To represent to any person because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~, status, weight, height, or body size, that any dwelling is not available for inspection, sale or rental when such dwelling is in fact so available.

(5) To induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~, status, weight, height, or body size.

§ 4604. Discrimination in residential real estate-related transactions.

(a) *In general.* —

It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~, status, weight, height, or body size.

(b) *Appaisal exemption.* —

Nothing in this chapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~, status, weight, height, or body size.

§ 4605. Discrimination in provision of brokerage services.

It shall be unlawful to deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling, exchanging or renting dwellings, or to discriminate against the person in the terms or conditions of such access, membership, or

participation, on account of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~ status, weight, height, or body size.

§ 4607. Exemptions in certain situations. [For application of this section, see 84 Del. Laws, c. 358, § 4] [Effective until Dec. 31, 2028].

(c) Nothing in this chapter limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling as long as they are applied to all occupants and do not operate to discriminate or have the effect of discriminating on the basis of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~ status, weight, height, or body size. Nor does any provision in this chapter regarding familial status or age apply with respect to housing for older persons as defined in § 4602(17) of this title.

§ 4607. Exemptions in certain situations. [For application of this section, see 84 Del. Laws, c. 358, § 4] [Effective Dec. 31, 2028].

(c) Nothing in this chapter limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling as long as they are applied to all occupants and do not operate to discriminate or have the effect of discriminating on the basis of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, ~~or housing status~~ status, weight, height, or body size. Nor does any provision in this chapter regarding familial status or age apply with respect to housing for older persons as defined in § 4602(17) of this title.

§ 4619. Prohibition of intimidation, violations and penalties.

Whoever, whether or not acting under color of law, by force or threat of force wilfully injures, intimidates or interferes with, or attempts to injure, intimidate or interfere with:

(1) Any person because of race, color, national origin, religion, creed, sex, sexual orientation, gender identity, marital status, familial status, source of income, age, disability, ~~or housing status~~ status, weight, height, or body size and because that person is or has been selling, purchasing, renting, financing, occupying or contracting or negotiating for the sale, purchase, rental, financing or occupation of any dwelling, or applying for or participating in any service, organization or facility relating to the business of selling or renting dwellings; or

(2) Any person because that person is or has been, or in order to intimidate such person or any other person or any class of persons from:

a. Participating, without discrimination on account of race, color, national origin, religion, creed, sex, sexual orientation, gender identity, marital status, familial status, source of ~~income, age or disability~~ income, age,

disability, weight, height, or body size in any of the activities, services, ~~organizations~~ organizations, or facilities described in paragraph (1) of this section; or

b. Affording another person or class of persons opportunity or protection so to participate; or

(3) Because any citizen is or has been, or in order to discourage such citizen or any other citizen from lawfully aiding or encouraging other persons to participate, without discrimination on account of race, color, national origin, religion, creed, sex, sexual orientation, gender identity, marital status, familial status, source of income, age, disability, ~~or housing status~~ status, weight, height, or body size in any of the activities, services, organizations or facilities described in paragraph (1) of this section, or participating lawfully in speech or peaceful assembly opposing any denial of the opportunity to so participate, that citizen shall be fined for each such act not more than \$2,500, or imprisoned not more than 1 year, or both, and if bodily injury results shall be fined for each such act not more than \$10,000, or imprisoned not more than 10 years, or both; and, if death results, for each such act shall be subject to imprisonment for any term of years or for life.

Section 4. Amend § 1183, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1183. Prohibitions and penalties.

(a) The following prohibitions apply:

(1) A person may not be appointed to, or removed from, or in any way favored or discriminated against with respect to, any county position, or appointive county administrative office, because of race, or color, or national origin, political or religious opinions or affiliations, sex, sexual orientation, ~~or gender identity~~ identity, weight, height, or body size. For purposes of this subsection:

a. “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

b. “Height” means a numerical measurement of total body height, the expression of a person’s height in relation to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

a.c. "Protective hairstyle" includes braids, locks, and twists.

b.d. "Race" includes traits historically associated with race, including hair texture and a protective hairstyle.

e. "Weight" means a numerical measurement of total body weight, the ratio of a person's weight in relation to height, the ratio of a person's weight in relation to any measurement, or an individual's unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

Section 5. Amend § 9605, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 9605. Recordation of instruments.

(b) (1) A recorder may not knowingly record or receive for filing any contract, mortgage, lease, deed or conveyance, or any other indenture or agreement affecting real property that contains any promise, covenant, or restriction that limits, restrains, prohibits, or otherwise provides against the sale, gift, transfer, assignment, conveyance, ownership, lease, rental, use, or occupancy of real property to or by any person because of race, color, creed, religion, sex, sexual orientation, gender identity, disability, age, marital status, familial status, source of income, national origin, ancestry, ~~or housing status.~~ status, weight, height, or body size. For purposes of this paragraph (b)(1):

a. "Body size" means the physical magnitude, extent, or bulk of a person, encompassing the person's relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

b. "Height" means a numerical measurement of total body height, the expression of a person's height in relation to weight, the ratio of a person's height in relation to any measurement, or an individual's unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person's limbs in proportion to the person's body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

a.c. "Housing status" means as defined in § 4602 of Title 6.

b.d. "Protective hairstyle" includes braids, locks, and twists.

e.e. "Race" includes traits historically associated with race, including hair texture and a protective hairstyle.

f. "Weight" means a numerical measurement of total body weight, the ratio of a person's weight in relation to height, the ratio of a person's weight in relation to any measurement, or an individual's unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

Section 6. Amend Chapter 45, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 4502. Prohibition of discrimination.

No person shall be excluded from jury service in this State on account of race, color, religion, sex, national-origin ~~or economic status.~~ origin, economic status, weight, height, or body size.

§ 4503. Definitions.

As used in this chapter:

(1) "Body size" means the physical magnitude, extent, or bulk of a person, encompassing the person's relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(4) "Height" means a numerical measurement of total body height, the expression of a person's height in relation to weight, the ratio of a person's height in relation to any measurement, or an individual's unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person's limbs in proportion to the person's body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(13) "Weight" means a numerical measurement of total body weight, the ratio of a person's weight in relation to height, the ratio of a person's weight in relation to any measurement, or an individual's unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited

to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

Section 7. Amend Subchapter II, Chapter 41, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 4161. Definitions [For applicability of section, see 83 Del. Laws, c. 407, § 2].

For purposes of this subchapter:

(2) "Body size" means the physical magnitude, extent, or bulk of a person, encompassing the person's relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(10) "Height" means a numerical measurement of total body height, the expression of a person's height in relation to weight, the ratio of a person's height in relation to any measurement, or an individual's unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person's limbs in proportion to the person's body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(21) "Weight" means a numerical measurement of total body weight, the ratio of a person's weight in relation to height, the ratio of a person's weight in relation to any measurement, or an individual's unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

§ 4164. School bullying awareness and prevention; criminal youth gang detection.

(b) *Prohibition of bullying.* —

(1) Each school district and charter school shall prohibit bullying and reprisal, retaliation, or false accusation against a target, witness, or one with reliable information about an act of bullying.

(2) Each school district and charter school shall establish a policy which, at a minimum, includes the following components:

f. A requirement that each school have a procedure for the administration to promptly investigate in a timely manner and determine whether bullying has occurred, and that such procedure include investigation of such instances, including a determination of whether the target of the bullying was targeted or reports being targeted

wholly or in part due to the target's race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity or expression, or national ~~origin~~origin, weight, height, or body size. This subsection does not preclude schools from identifying other reasons or criteria why a person is a target of bullying.

Section 8. Amend Subchapter II, Chapter 7, Title 19 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 710. Definitions.

For the purposes of this subchapter:

(2) "Body size" means the physical magnitude, extent, or bulk of a person, encompassing the person's relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(13) "Height" means a numerical measurement of total body height, the expression of a person's height in relation to weight, the ratio of a person's height in relation to any measurement, or an individual's unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person's limbs in proportion to the person's body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(34) "Weight" means a numerical measurement of total body weight, the ratio of a person's weight in relation to height, the ratio of a person's weight in relation to any measurement, or an individual's unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual's body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

§ 711. Unlawful employment practices; employer practices.

(b) It shall be an unlawful employment practice for an employer to do any of the following:

(1) Fail or refuse to hire or to discharge any individual or otherwise to discriminate against any individual with respect to compensation, terms, ~~conditions~~conditions, or privileges of employment because of such individual's race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~status, weight, height, or body size.

(2) Limit, segregate or classify employees in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect the individual's status as an employee because of such

individual's race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~, status, weight, height, or body size.

(3) a. For any employment-related purpose, fail or refuse to treat an employee or applicant for employment that the employer knows or should know is affected by pregnancy as well as the employer treats or would treat any other employee or applicant not so affected but similar in the ability or inability to work, without regard to the source of any condition affecting the other employee's or applicant's ability or inability to ~~work~~; work.

b. Fail or refuse to make reasonable accommodations to the known limitations related to the ~~pregnancy~~ pregnancy, weight, height, or body size of an applicant for employment or employee, unless the employer can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such ~~employer~~; employer.

c. Deny employment opportunities to a job applicant or employee, if such denial is based on the need of the employer to make reasonable accommodations to the known limitations related to the ~~pregnancy~~ pregnancy, weight, height, or body size of an employee or applicant for ~~employment~~; employment.

d. Require an applicant for employment or employee affected by ~~pregnancy~~ pregnancy, weight, height, or body size to accept an accommodation that such applicant or employee chooses not to accept, if such applicant or employee does not have a known limitation related to pregnancy or if such accommodation is unnecessary for the applicant or employee to perform the essential duties of ~~her job~~; the applicant or employee's job.

e. Require an employee to take leave under any leave law or policy of the employer if another reasonable accommodation can be provided to the known limitations related to the ~~pregnancy~~ pregnancy, weight, height, or body size of the ~~employee~~; or employee.

f. Take adverse action against an employee in the terms, conditions, or privileges of employment for requesting or using a reasonable accommodation to the known limitations related to the ~~pregnancy~~ pregnancy, weight, height, or body size of the employee.

(c) It shall be an unlawful employment practice for an employment agency to fail or refuse to refer for employment or otherwise to discriminate against any individual because of race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~ status, weight, height, or body size or to classify or refer for employment any individual on the basis of race, marital status, genetic information, color, religion, age, sex (including pregnancy), sexual orientation, gender identity, ~~or national origin~~, ~~or housing status~~; status, weight, height, or body size.

(d) It shall be an unlawful employment practice for a labor organization to do all of the following:

(1) Exclude or expel from its membership or otherwise to discriminate against any individual because of race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~; status, weight, height, or body size.

(2) Limit, segregate or classify its membership or to classify or fail or refuse to refer for employment any individual in any way which would deprive or tend to deprive any individual of employment opportunities or would limit such employment opportunities or otherwise adversely affect the individual's status as an employee or as an applicant for employment because of such individual's race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~; status, weight, height, or body size. ~~or~~

(e) It shall be an unlawful employment practice for any employer, labor organization or joint labor-management committee controlling apprenticeship or other training or retraining, including on-the-job training programs, to discriminate against any individual because of race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~ status, weight, height, or body size in admission to or employment in any program established to provide apprenticeship or other training.

(g) It shall be an unlawful employment practice for any employer, employment agency, labor organization or joint labor-management committee controlling apprenticeship or other training or retraining, including on-the-job training programs, to discharge, refuse to hire or otherwise discriminate against any individual or applicant for employment or membership on the basis of such person's race, marital status, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~ status, weight, height, or body size, because such person has opposed any practice prohibited by this subchapter or because such person has testified, assisted or participated in any manner in an investigation, proceeding, or hearing to enforce the provisions of this subchapter.

(o) Notwithstanding any other provision of this subchapter, it shall not be an unlawful employment practice for an employer to apply different standards of compensation or different terms, conditions or privileges of employment pursuant to a bona fide seniority or merit system or a system which measures earnings by quantity or quality of production or to employees who work in different locations, provided that such differences are not the result of an intention to discriminate because of race, marital status, genetic information, color, age, religion, sex (including pregnancy), sexual orientation, gender identity, ~~or national origin, or housing status~~; status, weight, height or body size, nor shall it be an unlawful employment practice for an employer to give and to act upon the results of any professionally developed ability test provided that such test, its administration or action upon the results is not designed, intended or used to discriminate

because of race, marital status, genetic information, color, religion, age, sex (including pregnancy), sexual orientation, gender identity, national origin, ~~or housing status~~, status, weight, height, or body size.

Section 9. Amend Chapter 51, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 5116. Fair housing provisions [For application of this section, see 84 Del. Laws, c. 358, § 4] [Effective until Dec. 31, 2028].

(a) No person, being an owner or agent of any real estate, house, apartment or other premises, shall refuse or decline to rent, subrent, sublease, assign or cancel any existing rental agreement to or of any tenant or any person by reason of race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, age, source of income, occupation, ~~housing-status~~ status, weight, height, body size or because the tenant or person has a child or children in the family.

(b) No person shall demand or receive a greater sum as rent for the use and occupancy of any premises because the person renting or desiring to rent the premises is of a particular race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, age, source of income, occupation, ~~housing-status~~ status, weight, height, body size or has a child or children in the family.

(d) Notwithstanding subsection (a) of this section relating to age discrimination, and consistent with federal and state fair housing acts, a landlord may make rental units available exclusively for rental by senior citizens. A senior citizen rental unit shall be available for rent solely to senior citizens, without regard to race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, source of income, occupation, ~~or housing-status~~ status, weight, height, or body size of the senior citizen and without regard to whether or not the senior citizen has a dependent child or children in the residence.

§ 5116. Fair housing provisions [For application of this section, see 84 Del. Laws, c. 358, § 4] [Effective Dec. 31, 2028].

(a) No person, being an owner or agent of any real estate, house, apartment or other premises, shall refuse or decline to rent, subrent, sublease, assign or cancel any existing rental agreement to or of any tenant or any person by reason of race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, age, source of income, occupation, ~~housing status~~ status, weight, height, body size or because the tenant or person has a child or children in the family.

(b) No person shall demand or receive a greater sum as rent for the use and occupancy of any premises because the person renting or desiring to rent the premises is of a particular race, creed, religion, marital status, color, sex, sexual

orientation, gender identity, national origin, disability, age, source of income, occupation, housing ~~status~~ status, weight, height, body size or has a child or children in the family.

(d) Notwithstanding subsection (a) of this section relating to age discrimination, and consistent with federal and state fair housing acts, a landlord may make rental units available exclusively for rental by senior citizens. A senior citizen rental unit shall be available for rent solely to senior citizens, without regard to race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, source of income, occupation, housing ~~status~~ status, weight, height, or body size of the senior citizen and without regard to whether or not the senior citizen has a dependent child or children in the residence.

§ 5141. Definitions.

For purposes of Part III of this title:

(2) “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(13) “Height” means a numerical measurement of total body height, the expression of a person’s height in relation to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

(34) “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in relation to height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual’s body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

Section 10. Amend § 5953, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5953. Discrimination prohibited.

(a) For purposes of this section:

(1) “Body size” means the physical magnitude, extent, or bulk of a person, encompassing the person’s relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

(2) “Height” means a numerical measurement of total body height, the expression of a person’s height in relation to weight, the ratio of a person’s height in relation to any measurement, or an individual’s unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person’s limbs in proportion to the person’s body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

~~(1)~~(3) “Housing status” means as defined in § 204 of Title 19.

~~(2)~~(4) “Protective hairstyle” includes braids, locks, and twists.

~~(3)~~(5) “Race” includes traits historically associated with race, including hair texture and a protective hairstyle.

(6) “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in relation to height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique physical composition of weight through body size, shape, and proportions. Weight includes measurements of individual body components, such as waist, hip, height, or chest measurements and any ratio of such body measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless of numerical measurement. An individual’s body size, shape proportions, and composition may make the individual appear fat or thin regardless of numerical weight.

(b) A person may not be appointed or promoted to, or demoted or dismissed from, any position in the classified service, or be in any way favored or discriminated against with respect to employment in the classified service, because of political or religious opinions or affiliations, sexual orientation, gender identity, sex, race, ~~or housing status~~, status, weight, height, or body size.

Section 11. Amend § 6962, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 6962. Large public works contract procedures [For application of this section, see 82 Del. Laws, c. 36, § 3].

(d) *Bid specifications and plans requirements.* —

(7) *Equality of employment opportunity and equal pay on public works.* —

a. As a condition of the awarding of any contract for public works financed in whole or in part by state appropriation, such contracts shall include the following provisions:

During the performance of this contract, the contractor agrees as follows and redesignating accordingly:

1. The contractor will not discriminate against any employee or applicant for employment because of race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing-status~~, status, weight, height, or body size. The contractor will take positive steps to ensure that applicants are employed and that employees are treated during employment without regard to their race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing-status~~, status, weight, height, or body size. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The contractor agrees to post in conspicuous places available to employees and applicants for employment notices to be provided by the contracting agency setting forth this nondiscrimination clause.

2. The contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for employment without regard to race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing-status~~, status, weight, height, or body size.

c. For the purposes of this section:

1. "Body size" means the physical magnitude, extent, or bulk of a person, encompassing the person's relative or proportionate dimensions, and includes metrics, ratios, measurements, ratings, or scores that include, in whole or in part, weight, height, or body size.

2. "Height" means a numerical measurement of total body height, the expression of a person's height in relation to weight, the ratio of a person's height in relation to any measurement, or an individual's unique physical composition of height through body size, shape, or proportions. Height includes measurements of individual body components, such as leg, torso, arm, foot, and neck measurements. Height encompasses, but is not limited to, an impression of a person as tall or short regardless of numerical measurement. The length of a person's limbs in proportion to the person's body may create the impression of the person as tall, short, or atypically proportioned, independent of numerical measurement of height.

~~1.3.~~ "Housing status" means as defined in § 204 of Title 19.

~~2.4.~~ "Protective hairstyle" includes braids, locks, and twists.

~~3.5.~~ "Race" includes traits historically associated with race, including hair texture and a protective hairstyle.

498 6. “Weight” means a numerical measurement of total body weight, the ratio of a person’s weight in
499 relation to height, the ratio of a person’s weight in relation to any measurement, or an individual’s unique
500 physical composition of weight through body size, shape, and proportions. Weight includes measurements of
501 individual body components, such as waist, hip, height, or chest measurements and any ratio of such body
502 measurements. Weight encompasses, but is not limited to, an impression of a person as fat or thin regardless
503 of numerical measurement. An individual’s body size, shape proportions, and composition may make the
504 individual appear fat or thin regardless of numerical weight.

SYNOPSIS

This Act prohibits discrimination based on weight, height, or body size in transportation, public accommodation, housing, commerce and trade, employment, jury selection, education, and public administration.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.